

SUGGESTIONS
FOR THE
PREVENTION OF
JUVENILE DEPRAVITY,

BY
BENJAMIN ROTCH,

ONE OF HER MAJESTY'S JUSTICES OF THE PEACE FOR THE
COUNTY OF MIDDLESEX.

Printed for Private Distribution only.

1846.

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PRINTED BY H. COURT, 26, BROOKE STREET, HOLBORN.

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SUGGESTIONS

For the prevention of JUVENILE DEPRAVITY, and the consequent diminution of the heavy Burthens cast, first, upon private Individuals by numerous petty Thefts, and lastly, upon the County by the oft repeated Arrests, Examinations, Committals, Prosecutions, and Imprisonments of JUVENILE OFFENDERS.

For many years the public mind has been trained to believe that an improved Prison Discipline was the Panacea for the prevention of crime, and it is only necessary to point to that valuable and most excellent Institution at Parkhurst to shew how earnestly (*so far as regards Juvenile Delinquency*) men of the first Station and the first Talent of the day, seconded by the powerful aid of the Legislature have devoted themselves to the subject, for it is impossible for an enlightened statesman to view the deeply-dyed depravity which exists among the Children of the lower orders, and not feel that no Government deserves the proud title of a *Paternal Government* that can allow such a state of things to continue, if any remedy can be suggested.

The opinions which I have ever held on this subject have remained unaltered amidst all the various changes that have taken place in the Public mind, on the subject of Prison Discipline, the degrading home Slavery of the Hulks, and the awful severance of all natural ties by transportation to distant climes. I have ever held all these to be ineffectual for the purpose of raising the moral standard of a great Nation, and still more ineffectual in promoting that social and domestic happiness which ought to be the bond of Union of an enlightened and Christian People. Nevertheless, I have not hesitated to put my shoulder to the wheel, and have laboured hard to improve our system of Prison Discipline, believing that we shall always have criminals to deal with, but deeply impressed also with the conviction that it is more consistent with the views of Christianity and common sense, that our exertions should be directed to the prevention of crime, especially among the young, than to the correction of criminals, who have been allowed by our present system to become enured to the commission of it.

A most interesting investigation which I have been lately carrying on as a Visiting Justice of the House of Correction at Cold Bath Fields, justifies me in predicting that when more is done to prevent crime than to punish it, our labours to diminish the burthens on the county purse will be crowned with far happier results than any we can now present to public view for the purpose of obtaining public support. From the Investigation before alluded to, it is evident that the want of proper parental care and the absence of domestic comforts are the two by far most fruitful and most manifest springs from which flows one vast tide of Juvenile Depravity and Crime, though let it not be supposed for a moment that these two springs cannot still further be traced to one deep seated source which might with God's assistance be speedily dried up; but the public mind is not yet prepared for this discovery, and we must be content to deal with the two main springs of crime to which I have alluded, until the public mind is more enlightened on the subject.

The recent Establishment of Baths and Wash-Houses for the Working Classes, and the efforts lately made to provide suitable and comfortable dwellings for the Poor, show that the current of public opinion is fast waking up to the paramount importance of domestic comforts to secure social happiness. Without them, HOME (that otherwise Magic word) can have no charms, for either the old or the young, and they are induced to seek pleasure abroad among the countless temptations of sin and depravity. Nothing can be more faithfully or more graphically depicted than the character and occupations of the young Thief of our great Towns, given by my excellent Friend and worthy colleague, Mr. Buchanan in his *Remarks on the causes and state of "Juvenile crime in the Metropolis,"*—but the remedy he proposes, falls far short I fear of what would be required to effect his purpose; and as I differ from him in some of the most prominent features of his plan, I am induced to follow his example and place my views before my brother Justices in a printed form for their consideration, in the hope that others will do the same, and that out of our various suggestions some practicable plan may be formed to meet the crying Evil which all admit, but for which so few seem prepared to suggest a remedy, and which has now become of such magnitude as to elicit universal and repeated complaints from Judges, and Juries, Justices, and Magistrates, and all concerned in the administration of our Criminal Laws.

It is in vain that the resources of the Government and Talents of its Executive are taxed to improve the condition and management of our penal settlements. To the young Minister entering for the first time on the duties of a colonial Secretary, the difficulties which this department of his office presents must be truly appalling, while he must feel that the present state of some of our penal settlements is a disgrace to civilized humanity—Has not money and talent enough been yet expended without adequate results to convince the Government (to use a homely Yorkshire phrase) that “*they have got hold of the wrong end of the stick?*” The present system is to allow a youth to become well hardened in villainy before he is transported. He is maintained alternately by the plunder of the public out of prison, and by the county purse in prison at a great expense for years; and after multiplied convictions for every grade of offence, from the trifling assault to the Highway Robbery and Mid-night Burglary, running through the mazes of every yard in the Gaol, carefully imparting into each the infamous tact, guilty ingenuity, and foul associations, slang language and wicked passions of the others, thus setting at naught all the carefully defined, and law enacted rules of what I have ever deemed to be under such circumstances, miscalled classification, he is at length deemed a worthy subject for Transportation, and is sent out to our penal colonies to form one of a community so depraved and degraded that, in moments of calm consideration, one is shocked at the means necessarily there resorted to, to make it manageable at all. A stupendous difficulty to the Executive abroad and a constant source of painful contemplation to the Government at home. Surely when we are driven by the earnest and justifiable remonstrances of our hard working colonists, who can no longer bear the constant infusion of such a polluted stream of Emigration among their industrious population, to found a new Colony in North Australia, at an enormous outlay, it would be wise to consider if a much less expense properly incurred at home might not effect far better results and be more like “*getting hold of the right end of the stick.*” It must be an obvious and admitted fact that old offenders for the most part rise from the ranks of Juvenile Depredators, and to cut off the supply to the former from the latter class would undoubtedly be striking at the root of the evil, and which might be done at home, where we can get at it conveniently instead of dealing with the branches many thousands of miles off, and at every possible disadvantage in Van Diemen’s Land and Norfolk Island. Surely, then, common sense points out that all our efforts

should be directed to stay the plague of Juvenile depravity at home; and before I venture to suggest a means of accomplishing this Herculean task, let me ask three plain and simple questions—

1st. Has the Ministry of the Gospel the proper and divinely appointed instrument for the eradication of all sin, through the enforcement of Principles destructive of the love of all sin, been effectual for the purpose? Manifestly not.

2nd. Has education as now conducted, tho' undoubtedly a great boon to the poorer classes, and poured upon them in 10,000 streams from the benevolent fountain of charity been effectual for the purpose? Manifestly not.

3rd. Has an improved Prison Discipline with its enlightened committees of Visiting Justices and Prison Inspectors, and its piles of Parliamentary Enactments been effectual for the purpose? Manifestly not.

The present agitated state of public feeling on the subject of Juvenile Crime and Juvenile Criminals loudly proclaims that no other answer can be given to these questions, and we are therefore not only justified, but actually called upon by the hallowed voice of Religion and of common Humanity, to seek some new remedy for the acknowledged evil. We must neither be alarmed by the novelty of such remedy, nor deterred by its cost if it has common sense for its foundation, and practicability in its details. And now for the remedy I would propose.

I should certainly not have ventured to follow on the footsteps of my able friend Mr. Buchanan so closely, by printing and circulating my views on the subject if our plans had not so widely differed in most essential features; but this being the case I am anxious that our views should be in the hands of our Brother Justices as nearly at the same time as possible, so that our discussions in the committee which has been appointed to consider of the subject of Juvenile Offenders may extend over both plans, and that the Committee may be the better enabled to decide between them.

Mr. Buchanan does not contemplate any legislative Interference—I contend that nothing effectual can be done without it—Mr. Buchanan looks to the County Rate for the means which, however, unfortunately is not available for the purpose. I look to the Treasury—Mr. Buchanan proposes a

withdrawal from contaminating Association only during the day—I propose an entire separation day and night from all bad Companions—and lastly Mr. Buchanan's is a voluntary System—mine a compulsory one.

Having thus drawn attention generally to these marked differences between the two plans, I will now proceed to develop my own in the firm conviction that it would be found both effectual and practicable.

I propose that a bill should be passed by the Legislature, the Preamble of which should in effect state, that the fearful extent of Juvenile Depravity and Crime in the Metropolitan Districts and in large and populous Towns requires generally immediate Interference on the part of the Legislature.—That the great causes of the said Juvenile Depravity and Crime appear to be the absence of proper Parental or Friendly care, and the absence of a comfortable home, and that all Children above the age of 7 and under the age of 15 years suffering from either of these causes require protection to prevent their getting into bad company, learning idle and dissolute habits, growing up in ignorance and becoming an expence and burthen on the Country as Criminals, and that such protection should be afforded by the state.

I propose that the various clauses of the Act should enact as follows—

I. That an Asylum for unprotected and destitute Children be founded by the Government to be called the CHILD'S HOME.

II. That Commissioners be appointed to manage such Asylum.

III. That provision be made in such Asylum for instructing Children in all useful arts, trades and occupations suitable to the working classes.

IV. That unprotected and destitute children shall be deemed to include all children above 7 and under 15 years of age under the following circumstances,—Children driven from their homes by the bad conduct of Parents—Children neglected by their Parents—Children who are Orphans and neglected by their friends—Children who are Bastards, and children who are Orphans, and have no one to protect them or provide for them, or for whom no one does provide—Children who from their own misconduct have no protection or provision found them—Children who are idle or

dissolute, and whose Parents or Friends cannot controul their bad conduct—Children who are destitute of proper food, clothing, or education owing to the poverty of their parents or friends, but whose parents or friends do not apply for, or receive parish relief—Children who are destitute for want of employment, and children of the class which become Juvenile Offenders generally.

V. That any such Child as aforesaid may be brought before any Two Justices of the Peace by any Constable or other peace Officer or by any Overseer of the poor or other parish Officer and evidence on oath being given to the satisfaction of such Justices that the Child is one of either of the classes enumerated in the foregoing clause, such Justices may sign an order for the admission of the Child into the Asylum.

VI. That when in the Asylum if not claimed or redeemed as hereinafter provided, the Children shall be subject to be dealt with as the state thinks proper, to serve as Sailors or Soldiers or Workmen in public works, or as Artificers or Tradesmen, or as Household Servants, or as and wherever the state may require.

VII. That on a Child being admitted into the Asylum, enquiry shall be made by the Commissioners as to the circumstances of the Parents or other persons now by law bound to support the said Child, and if found able to support, or to contribute to the support of the said Child, the Justices sending the said Child to the Asylum may make orders from time to time for any amount of contribution to be paid, for or towards the support of the said Child in the said Asylum.

VIII. That such sums be collected for the use of the Asylum by the Overseer or Rate Collectors of the Parish where the persons on whom the order is made reside, and that power be given to attach the property of such persons, or wages in the hands of Masters, or due from Masters of such persons, in cases of working people or servants, to satisfy the amount named in such order.

IX. That all Children sent to the said Asylum be taught several useful Trades, Arts or Occupations, besides the usual education of Reading, Writing and Arithmetic.

X. That if at any time any Parent or Friend should be able and willing to afford proper Protection and Employment for any Child in the said Asylum, subject to the approbation of Two Justices the Child may be permitted to leave the Asylum on such Parent or Friend's paying a sum to be settled by the Commissioners of the Asylum for such Permission.

One general Feeling which any suggestion for the taking of Children away from parental care usually creates is, that it will be immediately abused by unfeeling Parents wishing to get rid of the burthen of maintaining their Offspring, but it is conceived that the plan of taxing the Parents or Relatives for their maintenance in the Asylum as provided in the 7th and 8th clauses will be an adequate check for the prevention of any such abuse, while the Children becoming valuable by the sort of useful Education that is given them, will no doubt induce many a Parent to seek the means of getting their Children home again to assist by their valuable labour in support of the Family. We know perfectly well that the first years of a Boy's Apprenticeship are never spent in really learning the Trade he is apprenticed to learn, he is used by his Master as an errand boy, a servant, a groom, or even doing house work for some years in many cases before he begins to learn his Trade, and why? because if he learned his Trade at once, he would become so valuable that he could easily get work for himself, and so impatient to work upon his own account that he would be sure to run away before his time was up. We know by our experience in the House of Correction at Cold Bath Fields, that a boy may be made an excellent Shoemaker in Twelve Months, and that he might be made an equally good Tailor in an equally short time, admits of no doubt, while the business of a Tinman, a Shoeing Smith, a Painter, and an hundred others are learned with similar facility. Each Child taught a few of these useful Arts, instead of being a burthen upon, would be a valuable addition to a Family. I know I shall be told that the difficulty of providing for these Children however well taught, will be almost insuperable, and I shall see Parkhurst pointed at as a great example of this sad truth. It is in fact no example for me. There all the Children *have been criminals*, have been allowed to drink deeply of the cup of vice, and if not after trial, have at any rate before trial been subject to the, I may say almost electrical, contamination of Gaol Association, so rapidly does it take effect. There the foul impress of Felony or Misdemeanour is

stamped upon them all before they are offered to the Public as useful members of Society. The Children of the Asylum will be of a far different class. They will be taken before the actual commission of crime has been brought home to them, when surrounded by want destitution and injustice from the poverty or drunkenness or depravity of those who should be, but are not, their natural protectors, they would inevitably have fallen a prey to those who are ever on the look out for just such suffering creatures to make them, though only yet half willing, the tools of practiced crime; to become, when further advanced in sin, hardened and emboldened in Iniquity, and thus proper Candidates for Parkhurst.

The Experiment has never been tried of A STATE PROVISION *for innocent, but destitute and unprotected Children*, nor of a compulsory payment from the parent *for the proper maintenance and education of his Child*. I must not be told therefore of Refuges and Magdalens and Schools of Industry and Philanthropic Societies and Provisions for Poor criminals on their release from prison, or of any results which have followed on their adoption, as reasons why my plan should not be tried, they are no examples for this purpose. I am satisfied from a long experience in such matters, that no difficulty would be found in placing out boys well taught, well brought up, under rules of strict discipline, and who have not yet become criminals. The expense of maintaining them as innocent children will be far less than that of maintaining them as felons while we shall be destroying the root of this Upas Tree which stands in the midst of every densely populated Neighbourhood, spreading its branches so far in every direction that the good and virtuous even can at length reach them, and think they are destroying the tree by endeavouring to keep its unwieldy limbs within bounds by the pruning knife. A most fatal error!

How much longer will the overburthened Ratepayers endure to see a drunken Father earning from 30 to 50 shillings a week (and there are thousands of such) turn into the Gin Palace or the Beer Shop with his hard earned wages on the Saturday Night to spend it all in strong drink and debauchery. How much longer will that Ratepayer be content to lose from his unguarded Stall, or it may be even his well watched Premises, the petty Articles which the starving Children of that drinking sot are purposely sent out to steal to appease the craving of unsatisfied hunger? How much longer will that Ratepayer be content to pay the enormous sums which are daily

drawn from his too often slender resources to pay the heavy cost of the repeated apprehensions by the Police, examinations, remands, re-examinations, and committals by the Magistrates and Justices, Trials and Convictions by Juries, Sentences by Judges, and Imprisonments in our Gaols of those wretched Children? How much longer will intelligent Juries, men not only of common sense, but of common humanity, continue to present the state of Juvenile Depravity, and the mode of disposing of Juvenile Depredators as unsatisfactory and inhuman, and be satisfied to see nothing done on either subject in the way even of an effort to improve? How much longer will the Ministers who rule this great nation, be they of what politics or what party they may, remain deaf to the thousand tongues that are daily proclaiming that nothing has yet met the hourly increasing evils of Juvenile depravity, and not make some bold attempt to meet the difficulty in some new form and in some incipient stage less appalling than that which idleness and destitution present when matured into vice and depravity? It must be remembered that the Children with whom I propose to deal are the very same beings who are now dealt with by the state under the far more expensive character of criminals, and the simple question in the case as a matter of finance will be whether it would be more expensive to maintain any given number of innocent Children, and educate them as I propose they should be educated, than to capture, try, and maintain an equal number of Adult Felons at home and abroad at the enormous cost at which they are now dealt with. No one could for a moment doubt that the balance would be greatly in favor of the new plan now suggested, if considered only as a financial one; but in every other point of view how far more desirable must it be to prevent than to punish crime? To change the system of education among the working classes, and instead of teaching them to arrive at an excellence in Reading, Writing, and Arithmetic, which only makes them seek places above that which Nature destined them to fulfil, to have them taught those useful Arts which they can employ in every situation of their humble station in Society, learning to Read and Write, and keep accounts merely as ancillary to those useful trades and occupations by which they are to get their living, and so to add to the general stock of comfort and happiness among their fellows. To stop the wages in the hands of the employer which an abandoned and depraved Mechanic would squander on his own ruin, and disburse it for him on the legitimate object of maintaining and properly educating his own offspring. In a word to dry up

the springs of Juvenile depravity at their source, instead of endeavouring to deal with the raging flood of Crime, which experience has long taught us when once abroad sweeps away with resistless force every barrier which finite wisdom has ever yet suggested for arresting its awful progress.

This consideration alone should induce us not hastily to condemn any suggestion, however novel or gigantic it may at first sight appear, and will I trust gain from my Brother Justices of Middlesex for my humble endeavour, in what I consider the greatest field for exertion ever opened to the Philanthropist, a few moments Investigation of a plan which, however soon a better may supersede it, is the result of many years of anxious Enquiry and careful investigation, and which I am prepared to show involves no principle which has not been previously acknowledged and acted upon by the Legislature.

BENJAMIN ROTCH.

Lowlands
Harrow on the Hill,
Middlesex.

21st June, 1846.

Transcriber's Notes:

Printer's, punctuation and spelling inaccuracies were silently corrected.

Archaic and variable spelling has been preserved.

***** END OF THE PROJECT GUTENBERG EBOOK SUGGESTIONS
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